

Impeachment (Procedure Regularization) Act, 2002

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Impeachment (Procedure Regulation) Act, 2059

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Amending Acts

1. Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.07
2. Some Nepal Acts Amendment Act, 2072 2072.11.13

Act Number 11 of the year 2059

An Act Made to Provide for Regulating the Procedure of Impeachment

Preamble: Amended by the Some Nepal Acts Amendment Act, 2072. Whereas, according to the Constitution of Nepal, there is a provision that impeachment proceedings may be initiated against office-bearers holding office in constitutional bodies, and it is desirable to make legal provisions for regulating the procedure of such proceedings,

Therefore, in the first year of the reign of His Majesty King Gyanendra Bir Bikram Shah Dev, Parliament has enacted this Act. 1. Short Title and Commencement: (1) This Act may be called the "Impeachment (Procedure Regulation) Act, 2059".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

Amended by the Some Nepal Acts Amendment Act, 2072. (a) "Constitutional Office-Bearer" means the Chief Justice, the head or office-bearer of a constitutional body appointed upon the recommendation of the Constitutional Council pursuant to Article 284 of the Constitution of Nepal, and the term also includes a Judge of the Supreme Court and members of the Judicial Council pursuant to clauses (d) and (e) of sub-article (1) of Article 143 of the Constitution of Nepal.

(b) "Lack of Functional Competence" means a condition where a constitutional office-bearer is unable to perform his/her official duties due to a lack of physical or mental capacity.

(c) "Bad Conduct" means a condition where a constitutional office-bearer does not possess the conduct befitting his/her office, and the term also includes acts deemed to be corruption under the prevailing law.

(d) "Failure to Perform Official Duties Honestly" means a condition where a constitutional office-bearer, contrary to the prevailing law, has not performed or has refused to perform his/her responsibilities with good faith.

(e) "Investigation Committee" means the investigation committee formed pursuant to sub-section (1) of

Section 4. 3.

Who May Submit a Motion of Impeachment: (1) In the following circumstances, Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. at least twenty-five percent of the members of the Legislature-Parliament may submit a motion of impeachment against any constitutional office-bearer to remove him/her from office: (a) If there is a lack of functional competence of the constitutional office-bearer, (b) If there is bad conduct of the constitutional office-bearer, or (c) If the constitutional office-bearer has failed to perform his/her official duties honestly. (2) Members desiring to submit a motion pursuant to sub-section (1) shall give a notice containing such motion, stating the cause and grounds for submitting such motion, to the Speaker of the Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Legislature-Parliament through the Secretary-General of the Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Legislature-Parliament. (3) Along with the motion pursuant to sub-section (2), evidence substantiating the matter shall, as far as possible, be submitted. (4) After receiving the motion pursuant to sub-section (2), the Speaker shall present the motion at a meeting of the Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Legislature-Parliament, permit discussion, and set a time for it, giving notice thereof to the members of the Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Legislature-Parliament. 4. Formation of Investigation Committee: (1) For the purpose of investigating the causes and grounds mentioned in the motion received pursuant to sub-section (2) of Section 3, the Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Legislature-Parliament shall form an investigation committee comprising, as far as possible, representation from more than one political party, consisting of a necessary number of members of that House and one legal expert, with a maximum of eleven members. (2) The qualification of the legal expert member serving on the committee formed pursuant to sub-section (1) shall be equivalent to a person who has been a Judge of the Supreme Court or is qualified to be one. (3) The legal expert member shall take an oath before the Speaker prior to assuming office. (4) Among the members of the Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Legislature-Parliament serving on the investigation committee, the member designated by the Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Legislature-Parliament shall be the chairperson of the investigation committee. (5) The investigation committee shall, as far as possible, make decisions unanimously, and if unanimity is not reached, the decision of the majority shall be deemed the decision of the investigation committee. 5.

6. Procedure of the Investigation Committee: The procedure of the investigation committee shall be for a period of three months. Provided that, if reasonable cause exists, the Speaker may extend the time limit by a maximum of thirty days. 7. Powers of the Investigation Committee: (1) In the course of conducting inquiries and investigations regarding the causes and grounds specified in the motion submitted pursuant to sub-section (2) of Section 3, the investigation committee shall have the following powers:

- (a) To issue summons, notices, or interrogatories as required for the appearance before the investigation committee of the constitutional office-bearer against whom the accusation is made or any other person,
- (b) To require any person, body, or authority to produce any documents or evidence in their possession before the investigation committee within a specified time,
- (c) To record the statement of the constitutional office-bearer against whom the accusation is made,
- (d) To summon and question any person, expert, witness, or other individual having knowledge of the relevant facts to appear before the investigation committee and to record their deposition,
- (e) To carry out or cause to be carried out other necessary proceedings related to the investigation.

(2) If a motion of impeachment is submitted on the accusation of corruption against a constitutional office-bearer and an investigation committee is formed, such committee may also exercise the powers that an investigating officer may exercise under the prevailing law in corruption-related cases.

(3) The proceedings of the investigation pursuant to this Section shall generally be confidential, and no person other than the accused constitutional office-bearer, if he/she has appointed a legal practitioner, such legal practitioner, persons, experts deemed necessary by the investigation committee in relation to the investigation of the accusation, and employees engaged in the work of the investigation committee shall be allowed to be present or participate in such proceedings.

(4) The investigation committee may impose a fine of up to ten thousand rupees on any person who disobeys a summons, notice, or interrogatory issued pursuant to this Section, fails to produce documents or evidence as per the order given, violates any other order of the investigation committee, or obstructs or opposes the work and proceedings of the investigation committee. Provided that, if a person submits an application stating a reasonable cause for the inability to produce such documents or evidence, and the cause appears appropriate, the investigation committee may waive the fine imposed on him/her, wholly or partially. 8. Procedure Related to Investigation: (1) The investigation committee shall prepare a charge-sheet stating the causes and grounds for which the motion of impeachment has been submitted against the constitutional office-bearer for removal from office.

The committee shall give a reasonable time limit for the accused constitutional office-bearer to submit a defense including his/her explanation, and shall deliver the charge-sheet to him/her. (2) In addition to other matters, the charge-sheet pursuant to sub-section (1) shall clearly mention the following: (a) A brief description of the accusation based on which the motion of impeachment is submitted for his/her removal, (b) The basis for each accusation and the available evidence thereof, (c) If the motion of impeachment is submitted based on more than one accusation at once, the details and evidence mentioned in clauses (a) and (b) concerning each accusation, (d) Other necessary matters. (3) If the constitutional office-bearer fails to submit an explanation within the time limit pursuant to sub-section (1), or if the explanation submitted is not considered reasonable by the investigation committee, the investigation committee shall evaluate it accordingly and decide whether the motion of impeachment is appropriate or not. 9. Formation of Medical Board: (1) While investigating a constitutional office-bearer on the accusation of lack of functional competence, if the concerned constitutional office-bearer denies such accusation in the explanation requested, the investigation committee may, in consultation with the Speaker, form a three-member Medical Board consisting of experts in the relevant field to examine his/her physical or mental condition. (2) The Board pursuant to sub-section (1) shall examine the physical or mental condition of the concerned constitutional office-bearer and submit a report, stating the cause and basis of his/her physical or mental condition, to the investigation committee within the time limit set by the committee. (3) If the concerned constitutional office-bearer refuses to have his/her physical or mental condition examined before the Board pursuant to sub-section (1), or if he/she remains absent without reasonable cause within the time limit set by such Board for examination, the Board shall submit a report of that fact to the investigation committee. (4) Upon receiving the report pursuant to sub-section (3), it shall be presumed, unless proven otherwise, that the constitutional office-bearer refusing the examination of his/her physical or mental condition has a lack of functional competence due to his/her physical or mental condition, and the investigation committee shall base its report on that fact. 10.

Special Provision Regarding Investigation Related to Allegation of Corruption: (1) Notwithstanding anything contained elsewhere in this Act, if a committee is formed pursuant to Section 4 to investigate an allegation of

corruption against a constitutional office-bearer, the investigation committee itself may conduct the inquiry and investigation of such allegation, or the investigation committee may seek the assistance of any suitable person or body to conduct such inquiry and investigation. It shall be the duty of the concerned person or body to provide such assistance. (2) The person or body pursuant to sub-section (1) shall conduct the inquiry and investigation according to the prevailing law on corruption and submit a report, including their opinion and findings, to the investigation committee. (3) The investigation committee shall make its decision based, inter alia, on the report submitted pursuant to sub-section (2).

11. Requirement to Submit Report: (1) After making a determination pursuant to sub-section (3) of Section 10, the investigation committee shall submit a report thereof to the Speaker. (2) In addition to other matters, the report submitted pursuant to sub-section (1) shall contain the following: (a) A brief description of the investigation, (b) The subject matter determined or concluded by the investigation committee during the investigation, (c) The bases and evidence relied upon for the determination or conclusion pursuant to clause (b), (d) If any expert or authority has given any opinion concerning the matter, details thereof, (e) If the investigation was conducted concerning corrupt bad conduct, details of the report received pursuant to sub-section (2) of Section 10, (f) Other necessary matters relied upon for determining or not determining the accusation.

12. Consideration of the Motion: (1) The Speaker shall present the report submitted by the investigation committee pursuant to Section 11 to the Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Legislature-Parliament. (2) The report submitted pursuant to sub-section (1) shall be an integral part of the motion submitted pursuant to sub-section (2) of Section 3. (3) If the motion pursuant to sub-section (2) of Section 3 is approved by the Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Legislature-Parliament, the motion of impeachment against the accused constitutional office-bearer shall be deemed to have been passed.

13. Repealed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

14. Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Deemed Removed from Office: After the motion of impeachment against the accused constitutional office-bearer is passed by the Legislature-Parliament pursuant to sub-section (3) of Section 12, such office-bearer shall be deemed to have been automatically removed from office.

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